

Acts, determine the amount of costs, and shall have power to disallow as costs in the arbitration the costs of any witness whom he considers to have been called unnecessarily, and any other costs which he considers to have been caused or incurred unnecessarily, and, if he thinks the circumstances such as to justify him in so doing, to order that each of the parties shall bear their own costs.

(6) There may be contained in the award of the arbitrator a finding that the claimant, after having been requested in writing by the trustees so to do, has failed to deliver to the trustees a statement in writing of the amount claimed, giving sufficient particulars and in sufficient time to enable the trustees to make a proper offer, and, where such a finding is contained in the award, the provisions of the Lands Clauses Acts as to costs of arbitrations shall apply as if the trustees had offered the same sum or a greater sum than that found to be due by the award :

Provided that this provision shall not apply unless the written request for particulars contained a notice of the effect of this provision.

(7) Land includes easements in or relating to land.

CHAPTER 57.

An Act to make better provision for the employment of unemployed persons by facilitating the acquisition of, and entry on, land required for works of public utility, and for purposes connected therewith.

[3rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Subject as hereinafter provided, the provisions of the Housing, Town Planning, &c. Act, 1909, and of the Housing, Town Planning, &c. Act, 1919, which relate to the procedure for the compulsory acquisition of land for the purposes of Part III. of the Housing of the Working Classes Act, 1890, by the Minister of Health and local authorities, and to entry on land acquired for those purposes, shall apply to the compulsory acquisition of land for the purpose of works of public utility and of land which may be acquired in connection with any such works, and to the entry on land acquired for that purpose, as if those enactments were herein re-enacted with the necessary adaptations and modifications and with the substitution of the appropriate Government department for the Minister of Health and of the local authority having power to execute a work of public utility for the local authority within the meaning of the said Part III. :

Provision for facilitating the compulsory acquisition of, and entry on, land required for works of public utility.
9 Edw. 7.
c. 44.
9 & 10 Geo. 5.
c. 35.
53 & 54 Vict.
c. 70.

Provided that—

- (a) the powers conferred by this section shall not be exercised except where it is certified by the Minister of Labour that, having regard to the amount of unemployment existing in any area, it is desirable that the provisions of this section should be put into operation with a view to the speedy provision of employment for unemployed persons from that area, and the Minister of Labour shall take into consideration any representations which may be made to him by any local authority to the effect that he should issue a certificate under this section; and
- (b) no order authorising the compulsory acquisition of any land for any purpose shall be made under any enactment as applied by this section, unless an order authorising the compulsory acquisition of that land for that purpose could have been made under some enactment in force at the commencement of this Act; and
- (c) where an enactment in force at the commencement of this Act, which authorises the compulsory acquisition of land for any purpose for which land has been authorised to be acquired compulsorily by an order made under this Act, contains a provision that the arbitrator in determining the amount of any disputed compensation shall have regard to the extent to which the remaining and contiguous lands and hereditaments belonging to the same proprietor may be benefited by the proposed work for which the land is authorised to be acquired, that provision shall have effect as respects land authorised to be acquired compulsorily by the said order.

Power to enter on and acquire land for construction and improvement of roads.

2.—(1) If it appears to the Minister of Labour that immediate action is necessary for the purpose of dealing with unemployment, and that land cannot be acquired under the foregoing provisions of this Act with such expedition as the case requires, he may certify accordingly, and thereupon the Minister of Transport (in this section referred to as “the Minister”) or, with the approval of the Minister, any local authority, shall, subject to the provisions of this section, have power forthwith to enter upon and take possession of any such land as may be required for or in connection with the construction of any arterial road, being a road which the Minister or the local authority, as the case may be, has or have power to construct or required by the local authority for the improvement of any road, with a view to the employment of unemployed persons in the construction or improvement of the road :

Provided that nothing in the foregoing provision shall authorise the Minister or any local authority to enter on any permanent building or structure, or to enter upon or take possession of any land unless that land could, under some enactment in force at the commencement of this Act, have been authorised to be acquired compulsorily for, or in connection with, the construction or improvement of a road.

(2) Before entering on any land under this Act, the Minister or local authority shall give seven days' notice in writing of the intention so to do to the owner and occupier of the land.

A notice for the purposes of this provision may be served either—

- (a) by delivering it to or leaving it at the usual or last known place of abode of the person on whom it is to be served; or
- (b) by sending it by post in a prepaid letter addressed to that person at his usual or last known place of abode; or
- (c) by delivering it to some person on the premises or, if there is no person on the premises who can be so served, by affixing it on some conspicuous part of the premises;

and any such notice may be addressed by the description of the "owner" or the "occupier" of the premises (naming them) without further name or description.

(3) Where the Minister or a local authority enter upon any land in pursuance of this section, he or they shall, by virtue of this section, have power to acquire the land compulsorily, and for the purpose of the acquisition of any such land the provisions of the Lands Clauses Acts shall, subject to the provisions of this section, be deemed to be incorporated in this Act.

(4) The Minister or local authority shall, as soon as may be after entering on any land under this section, serve notice under section eighteen of the Lands Clauses Consolidation Act, 1845, ^{s & 9, Viet.} of the intention to take the land, and shall add to the notice a ^{c. 18.} statement that the entry on the land is made in pursuance of this Act, and shall in all respects be liable as if such notice had been given on the date of entering on the land.

(5) The power conferred by this section to enter on land may, save as hereinbefore in this section provided, be exercised without notice to or the consent of any person and without compliance with the provisions of sections eighty-four to ninety of the Lands Clauses Consolidation Act, 1845, but such entry shall be without prejudice to the liability to pay compensation for the land and interest thereon as from the date on which entry is made, such compensation and interest to be ascertained in accordance with the provisions of the Acquisition of Land ^{9 & 10 Geo. 5.} (Assessment of Compensation) Act, 1919. ^{c. 57.}

Contribution
by local
authorities
to works
outside their
area.

3.—(1) With a view to the provision of employment for the unemployed persons in their area, a local authority may, subject to the approval of the Minister of Health, enter into agreements with any Government department or local authority by whom any work of public utility is being, or is about to be, constructed for the payment of a contribution by that authority towards the expenses which may be incurred in carrying out that work, and any two or more local authorities may, subject to the like approval, make schemes with a view to providing for the employment of the unemployed persons in their areas on works of public utility and may by any such schemes make arrangements as to the manner in which the expenses incurred in connection with the works are to be defrayed.

51 & 52 Vict.
c. 41.

(2) A local authority shall have power, with the approval of the Minister of Health, to borrow money for the purposes of any agreement entered into or any scheme made by the authority under this section, in the case of the council of a county in the same manner as for the purposes specified in section sixty-nine of the Local Government Act, 1888, in the case of the council of a metropolitan borough under the Metropolis Management Acts, 1855 to 1893, in the case of the Common Council of the City of London under the City of London Sewers Acts, 1848 to 1897, and in the case of any other council in the same manner as for the purposes of the Public Health Acts, 1875 to 1908.

(3) In this section the expression "local authority" means the council of a county or a county borough, or of an urban or rural district :

Provided that, for the purposes of the application of the provisions of this section to the administrative county of London, the local authorities shall be the London County Council, the councils of metropolitan boroughs, and the Common Council of the City of London.

Section 9 (2)
of the Edw. 7.
c. 47, not
to apply in
certain
cases.

4. The provisions of subsection (2) of section nine of the Development and Road Improvement Funds Act, 1909, shall not apply with respect to the construction of any new road where the Minister of Labour certifies that, having regard to the exceptional amount of unemployment in any area, it is desirable that the construction of the new road should be proceeded with forthwith with a view to the speedy provision of employment for unemployed persons from that area.

Interpreta-
tion and
saving.

5.—(1) In this Act the expression "work of public utility" means the construction or improvement of roads (including bridges, viaducts, and subways) or other means of transit, the widening or other improvement of waterways, the construction or improvement of harbours, the construction of sewers or waterworks, afforestation, the reclamation or drainage of land, and any other work, being a work which a local authority has power to execute, which is approved for the purposes of this

Act by the appropriate Government department as a work of public utility.

(2) If any question arises in any case as to what department is the appropriate Government department within the meaning of this Act, the question shall be referred to and determined by the Treasury.

(3) The provisions of this Act shall be in addition to and not in substitution for any power of any Government department or local authority to enter upon or acquire any land for the purposes of any work of public utility.

6.—(1) In the application of this Act to Scotland—

- (a) References to the Scottish Board of Health shall be substituted for references to the Minister of Health:
- (b) For the reference to the Housing, Town Planning, &c., Act, 1919, there shall be substituted a reference to the Housing, Town Planning, &c. (Scotland) Act, 1919: Application to Scotland and Ireland.
9 & 10 Geo. 5.
c. 60.
- (c) For reference to section eighteen and sections eighty-four to ninety of the Lands Clauses Consolidation Act, 1845, there shall be substituted references to section seventeen and sections eighty-three to eighty-eight respectively of the Lands Clauses Consolidation (Scotland) Act, 1845: 8 & 9 Vict.
c. 19.
- (d) The following subsections shall be substituted for subsections (2) and (3) of section three of this Act:—

“(2) Expenses incurred by a local authority under this section shall be defrayed out of such assessment as the Scottish Board of Health may designate and shall not be reckoned in any calculation as to the statutory limit of such assessment; and a local authority shall have power with the approval of the Board to borrow money for the purposes of any agreement entered into or any scheme made by the authority under this section on the security of such assessment as the Board may designate.

“(3) In this section the expression ‘local authority’ means a county council or a town council.”

(2) In the application of this Act to Ireland—

- (a) References to the Local Government Board for Ireland shall be substituted for references to the Minister of Health:
- (b) For the reference to the Housing, Town Planning, &c. Act, 1909, and the Housing, Town Planning, &c. Act, 1919, there shall be substituted a reference to the Housing of the Working Classes (Ireland) Acts, 1890 to 1919:

(c) For the reference to section sixty-nine of the Local Government Act, 1888, there shall be substituted a reference to Article 22 of the Schedule to the Local Government (Application of Enactments) Order, 1898 :

(d) For the reference to the Public Health Acts, 1875 to 1908, there shall be substituted a reference to the Public Health (Ireland) Act, 1878 to 1919 :

(e) Where the Minister or a local authority have power to acquire land compulsorily by virtue of section two of this Act, the power shall be exercisable in like manner as a power to acquire land compulsorily is exercisable by virtue of a provisional order made under section ten of the Local Government (Ireland) Act, 1898, and duly confirmed, and the provisions with respect to the service of notice under section eighteen of the Lands Clauses Consolidation Act, 1845, shall not apply.

61 & 62 Vict.
c. 37.

Short title;

7.—(1) This Act may be cited as the Unemployment (Relief Works) Act, 1920.

(2) This Act shall continue in force for twelve months and no longer unless Parliament otherwise determines :

Provided that the expiry of this Act shall not

(a) affect the previous operation thereof or of anything duly done or suffered thereunder ; or

(b) affect any right, privilege, obligation or liability acquired, accrued or incurred thereunder ; or

(c) affect any legal proceeding, arbitration, remedy or investigation in respect of such right, privilege, obligation or liability as aforesaid ;

and any such legal proceeding, arbitration, remedy or investigation may be instituted, enforced or continued as if this Act had not expired.

CHAPTER 58.

An Act to continue temporarily and give effect to certain orders relating to the early closing of shops and for purposes connected therewith.

[3rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The order made by the Secretary of State dated the twenty-fourth day of April nineteen hundred and seventeen,

Temporary
continuance
of certain